

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(Criminal Miscellaneous Jurisdiction)
Present:**

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Aminul Islam

Criminal Miscellaneous No:47202 of 2013

Md. Abdur Rahim

.....Accused-Petitioner.

- VERSUS-

The State.

.....Opposite-Party.

Mr. Md. Golam Rosul, Advocate

.....for the accused-petitioner.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.....for the State

Heard and Judgment on: 05.12.2023.

S M Kuddus Zaman,J:

On an application under section 561A of the Code of Criminal Procedure filed by the accused-petitioner Md. Abdur Rahim this Rule was issued calling upon the opposite party to show cause as to why the proceedings of G.R No. 483 of 2005 arising out of Mithapukur Police Station Case No. 45 dated 23.07.2005 under sections 467/468/471/420/34/114/506 of the

Penal Code, now pending in the Court of learned Additional Chief Judicial Magistrate, Rangpur should not be quashed and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that the opposite party as complainant lodged a Complaint alleging that he inharitant 35 decimal land from his father. On 04.02.2005 the accused persons disclosed that the father of the complainant had sold above land to the father of the accused persons by registered kabla deed No. 18582 dated 11.07.1964 and the accused persons showed to him a photocopy of the above document which is in fact a forged document. The accused persons prepared the record of right of above land in their names on the basis of above forged document and forcibly dispossessed the complainant from above land. The complainant went the relevant Registration Office and found that there is no existence of above document in the relevant volume book.

On conclusion of investigation the investigating officer submitted charge sheet against two co-accused persons namely Abdul Monnaf and Abdul Motin and final report against petitioner Abdur Rahim. Above case was further investigated

but it was again resulted into submission of the final report against the petitioner. But the learned Judicial Magistrate took cognizance against the petitioner along with his two brothers co-accused namely 01. Abdul Mannan and 02. Abdul Motin under sections 467/468/471/420/34/114/506 of the Penal Code.

Being aggrieved by above order of framing of charge accused petitioner Abdur Rahim preferred Criminal Revision No. 160 of 2012 to the learned Sessions Judge, Rangpur who on consideration of submissions of the learned advocate of respective parties and materials on record rejected above petition vide impugned judgment and order dated 04.07.2013.

Challenging the legality and propriety of above judgment and order passed by the learned Sessions Judge, Rangpur above petitioner as petitioner move to this Court and obtain this rule.

Mr. Md. Golam Rosul the learned Advocate for the petitioner submits that above case was investigated for about three times and in all above investigations final reports were submitted against the accused petitioners. There is no allegation that the petitioner forged the impugned document or he was in

possession of the same or he claimed title in above land on the basis of above deed or he enjoyed any benefit out of above document. But the learned Judicial Magistrate most illegally framed charge against the petitioner and the learned Sessions Judge without appreciating above materials on record most illegally affirmed above flawed judgment and order of the learned Judicial Magistrate which is not tenable in law.

On the other hand Mr. S.M. Iqbal Bahar Bhuiyan the learned advocate for the opposite-party No.2 submits that petitioner Abdur Rahim is a son of Md. Mofazzel Hossain and he along with his other two full brothers namely co- accused 01. Abdul Munaf and 02. Abdul Motin created above forged document and he is a beneficiary of the same. The status of the petitioner is same as that of accused Abdul Motin and Abdul Monnaf but the investigating officer most illegally submitted final report against him. The learned Judicial Magistrate on consideration all materials on record rightly framed charge against the petitioner and the learned Sessions Judge lawfully rejected the Criminal Revision of the petitioner and affirmed the judgment and order of the learned Judicial Magistrate which calls for no evidence.

We have considered the submissions of the learned advocate for the respective parties and carefully examined all materials on record.

It has been admitted in the Complaint that on the basis of the alleged forged Kobla deed the accused persons recorded their names in the survey Khatian and the accused persons are also in possessing the above land. The complainant did not see the original impugned Kobla deed dated 11.07.1964 or any certified copy of the same allegedly executed by his father to the father of the petitioner. The complainant allegedly saw a photocopy of above deed but the same was not produced in Court.

In the complaint there is no allegation that the petitioner forged the impugned Kabla deed No.18582 dated 11.07.1964. There is no allegation that the petitioner was in possession of above forged document or he used above forged document or he obtained any benefit or tried to get benefit out of above forged document.

It has been alleged that a photocopy of the alleged forged document was shown to the informant. It is not understandable as to how this case will bring a fruitful result without any

allegation that the accused persons showed or produced original forged document or they are in possession of the same. On conclusion of investigation the investigation officer submitted final report against the petitioner.

On consideration of above materials on record we hold that the learned Judicial Magistrate committed serious illegality in framing charge against the petitioner without any legal basis under sections 467/468/471/420/34/114/506 of the Penal Code and the learned Sessions Judge most illegally affirmed above flawed judgment and order of the learned Judicial Magistrate which is not tenable in law. Continuation of above still born case shall cause unnecessary sufferings and plight for the petitioner but shall not meet the ends of justice.

In view of the materials on record we find substance in this petition and the rule issued in this connection deserves to be made absolute.

Accordingly, the Rule is made absolute.

Let the proceeding of G.R No. 483 of 2005, now pending in the Court of learned Additional Chief Judicial Magistrate, Rangpur be quashed.

Communicate this judgment and order to the Court concerned at once.

Md. Aminul Islam, J:

I agree.

Md. Enayet Kabir/Assistant Bench Officer